

March 27, 2026, Civil Law & Motion Tentative Rulings

1. CU0001237 Peter Lindley vs. Regional Emergency Medical Services Auth., et al.

On the Court's motion, this matter is continued to March 27, 2026, at 1:00 p.m. The parties shall appear for argument limited to no more than 10 minutes per side.

2. CU0002209 Julli Conde vs. City of Nevada, et al.

Defendant Inn Town Development, LLC's motion to compel discovery is denied. Defendant's request for sanctions is granted in the amount of \$1,060.00.

Plaintiff filed untimely responses. As such, the motion to compel is denied as moot.

A court retains the authority to hear a motion to compel even after responses are served, as the court may still award sanctions in favor of the propounding party due to the responding party's failure to provide timely responses. *See Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409. At bar, Plaintiff failed to provide timely responses to the discovery requests, which forced Defendant to file the present motion to compel. No good cause or justification has been provided for Plaintiff's inaction. Defendant is entitled to sanctions for the cost of bringing the motion. The Court awards sanctions against Plaintiff in the amount of \$1,060.00 for reasonable attorney's fees in relation to the instant motion, payable by Plaintiff to Defendant within thirty (30) days of the hearing date.

3. CU0002355 Scott Baker vs. Tahoe Forest Hospital District

Defendant Tahoe Forest Hospital District's Demurrer to Plaintiff's complaint is sustained without leave to amend as to the second cause of action for breach of contract and the third cause of action for breach of the implied covenant of good faith and fair dealing.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. The court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-14.